

THE AI ACT AS OF AUGUST 2026

They deferred the AI Act. They did not defer Article 50

50

High-risk obligations moved to December 2027. But the Article 50 transparency duties have applied since 2 August 2026 — and they land on anyone running a chatbot or publishing AI-generated content.

THE PROBLEM

A deferral read as an amnesty

Two questions sound almost identical and need opposite answers: it was deferred, so can we drop it — or everything applies now, so are we in trouble. Both readings are wrong, and getting it wrong either way costs you: an unnecessary compliance project, or real exposure to a fine.

THE CALENDAR

What moved and what applies

The Digital Omnibus on AI deferred high risk by 16 and 12 months. It left Article 50 untouched, and Poland's own AI systems act entered into force separately.

Annex III	2 December 2027
Annex I	2 August 2028
Article 50	2 August 2026
Poland's AI act	11 August 2026

ARTICLE 50 IN PRACTICE

Four duties already in force

Article 50 attaches to a system's function, not to a risk tier. You do not need a high-risk system for it to apply — a chatbot is enough.

Chatbot	say it is AI
AI content	mark it machine-readably
Deepfake	disclose it
Emotion AI	inform people

FINES AND DEADLINES

Two dates still ahead of you

The transparency fines are real, and two deadlines are still coming: the grace period for machine-readable content marking ends in December, and the Polish authority starts fining in October.

Article 50	EUR 15m or 3%
Prohibited practices	EUR 35m or 7%
KRiBSI fines from	28 October 2026
Content marking	2 December 2026

MICODE

We will review your chatbot and your content

We build chatbots and content pipelines that say they are AI, cite their sources and have room to answer I do not know. Article 50 transparency falls out of that architecture rather than out of a clause added to your terms.

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